

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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CARLOS DIAZ,

Plaintiff,

-against-

SUMMONS

THE CITY OF NEW YORK, POLICE OFFICER RONY SHAROUBIM, Shield No. 24674, POLICE OFFICER MICHAEL RANDAZZO, Shield No. 02621, POLICE OFFICER JASON FRIAS, Shield No. 22908, POLICE OFFICER STEVENSON LAPORTE, Shield No. 25231, LIEUTENANT JOSEPH WERNERSBACH, and POLICE OFFICERS JOHN DOES NUMBERS ONE THROUGH TEN,

Index No.:

The Basis of Venue is:
Location of Incident

Plaintiff designates Kings County as the place of trial.

Defendants.

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To the above named Defendants:

You are hereby summoned to answer the Verified Complaint in this action, and to serve a copy of your Verified Answer to the Verified Complaint, or, if the Verified Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
April 26, 2019

Yours, etc.

/s/
JACOBS & HAZAN, LLP.
STUART E. JACOBS, ESQ.
Attorney for Plaintiff
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 577-2690

TO: City of New York, Corporation Counsel, 100 Church Street, NY, NY 10007
POLICE OFFICER RONY SHAROUBIM, Shield No. 24674, 68th Precinct, 333 65th St,
Brooklyn, NY 11220
POLICE OFFICER MICHAEL RANDAZZO, Shield No. 02621, 68th Precinct, 333 65th
St, Brooklyn, NY 11220
POLICE OFFICER JASON FRIAS, Shield No. 22908, 68th Precinct, 333 65th St,
Brooklyn, NY 11220
POLICE OFFICER STEVENSON LAPORTE, Shield No. 25231, 68th Precinct, 333 65th
St, Brooklyn, NY 11220
LIEUTENANT JOSEPH WERNERSBACH, 68th Precinct, 333 65th St, Brooklyn, NY
11220

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X
CARLOS DIAZ,

Plaintiff,

INDEX NO.:

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK, POLICE OFFICER RONY SHAROUBIM, Shield No. 24674, POLICE OFFICER MICHAEL RANDAZZO, Shield No. 02621, POLICE OFFICER JASON FRIAS, Shield No. 22908, POLICE OFFICER STEVENSON LAPORTE, Shield No. 25231, LIEUTENANT JOSEPH WERNERSBACH, and POLICE OFFICERS JOHN DOES NUMBERS ONE THROUGH TEN,

JURY TRIAL DEMANDED

Defendants.
----- X

Plaintiff CARLOS DIAZ, by his attorneys, Jacobs & Hazan, LLP, as and for his Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On January 27, 2018, at approximately 3:00 a.m., plaintiff Carlos Diaz, while lawfully in the vicinity of 80th Street and 4th Avenue, Brooklyn, New York, was subject to an unlawful search, false arrest, and false imprisonment by the defendant New York City police officers. Plaintiff was denied the right to due process and a fair trial. Plaintiff was deprived of his constitutional and common law rights when the individual defendants unlawfully searched, confined, falsely arrested, falsely imprisoned, and denied plaintiff the right to due process and a fair trial in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York.

PARTIES

2. Plaintiff CARLOS DIAZ is a resident of the state of New York.

3. POLICE OFFICER RONY SHAROUBIM, Shield No. 24674, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

4. POLICE OFFICER RONY SHAROUBIM, Shield No. 24674, is and was at all times relevant herein, assigned to the 68th Precinct

5. POLICE OFFICER RONY SHAROUBIM, Shield No. 24674, is being sued in his individual and official capacity.

6. POLICE OFFICER MICHAEL RANDAZZO, Shield No. 02621, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

7. POLICE OFFICER MICHAEL RANDAZZO, Shield No. 02621, is and was at all times relevant herein, assigned to the 68th Precinct

8. POLICE OFFICER MICHAEL RANDAZZO, Shield No. 02621, is being sued in his individual and official capacity.

9. POLICE OFFICER JASON FRIAS, Shield No. 22908, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

10. POLICE OFFICER JASON FRIAS, Shield No. 22908, is and was at all times relevant herein, assigned to the 68th Precinct

11. POLICE OFFICER JASON FRIAS, Shield No. 22908, is being sued in his individual and official capacity.

12. POLICE OFFICER STEVENSON LAPORTE, Shield No. 25231, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

13. POLICE OFFICER STEVENSON LAPORTE, Shield No. 25231, is and was at all times relevant herein, assigned to the 68th Precinct

14. POLICE OFFICER STEVENSON LAPORTE, Shield No. 25231, is being sued in his individual and official capacity.

15. LIEUTENANT JOSEPH WERNERSBACH, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

16. LIEUTENANT JOSEPH WERNERSBACH, is and was at all times relevant herein, assigned to the 68th Precinct

17. LIEUTENANT JOSEPH WERNERSBACH, is being sued in his individual and official capacity.

18. New York City Police Officers John Does #1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

19. Police Officers John Does #1-10 are being sued in their individual and official capacities.

20. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

21. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

22. Plaintiff in furtherance of his causes of action brought pursuant to New York State law filed a timely Notice of Claim against the CITY OF NEW YORK in compliance with the Municipal Law Section 50 and in accordance with New York State law.

23. In accordance with New York State law and General Municipal Law Section 50, plaintiff testified at a hearing held pursuant to General Municipal Law Section 50-H on July 23, 2018.

24. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and THE CITY OF NEW YORK has failed to pay or adjust the claims.

25. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

26. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

27. On January 27, 2018, at approximately 3:00 a.m., plaintiff was a lawful passenger in a motor vehicle traveling in the vicinity of 80th Street and 4th Avenue, Brooklyn, New York when the defendant police officers unlawfully stopped the motor vehicle and unlawfully handcuffed and falsely arrested plaintiff without reasonable suspicion or probable cause.

28. The defendant officers ordered plaintiff to get out of the vehicle and proceeded to search the vehicle without legal justification or probable cause.

29. At no point relevant herein did the defendant police officers recover any drugs, weapons or other contraband from plaintiff or from plaintiff's possession, custody or control.

30. At no time relevant herein did plaintiff commit a crime or violate the law, nor did plaintiff behave in a manner that would lead a reasonable police officer to believe that plaintiff committed, was about to commit or was committing a crime.

31. Nevertheless, plaintiff was unlawfully handcuffed and unlawfully arrested plaintiff by the defendant officers without legal justification or probable cause.

32. Plaintiff was transported by the defendant police officers to the 68th precinct against his will, where he was photographed, searched, fingerprinted and then placed in a holding cell by the defendants.

33. After several hours in unlawful custody, plaintiff was transported from the 68th Precinct to Brooklyn County Central Booking.

34. The defendant police officers provided the District Attorney's Office with false, misleading and/or incomplete information about the facts that allegedly led them to believe that plaintiff committed a crime.

35. Based upon the false, misleading and/or incomplete information provided to the District Attorney's Office by the defendant police officers, a prosecution was initiated against plaintiff.

36. On January 27, 2018, at approximately 11:00 p.m., after being unlawfully detained for approximately 20 hours, plaintiff was arraigned in Brooklyn Criminal Court and he was released on his own recognizance.

37. Plaintiff was unlawfully charged with VTL 1227(1) - Consumption or Possession of Alcoholic Beverages in Certain Motor Vehicles.

38. On July 26, 2018, all charges against plaintiff were dismissed and sealed in their entirety.

39. Some of the police officer defendants observed the violation of plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent the unjustifiable search, seizure, false arrest and imprisonment, and denial of plaintiff's right to due process and a fair trial.

40. The unlawful search, seizure, false arrest and imprisonment, denial of plaintiff's right to a fair trial by the individually named defendants caused plaintiff to sustain physical, psychological and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth and Fourteenth Amendment Rights

41. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 40 with the same force and effect as if more fully set forth at length herein.

42. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be seized, unlawfully searched, falsely arrested, and falsely imprisoned, without reasonable suspicion and/or probable cause, in violation of plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

43. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, emotional, psychological and economic injuries.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

44. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 43 with the same force and effect as if more fully set forth at length herein.

45. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

46. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution.

47. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

48. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

49. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful Search

50. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 49 with the same force and effect as if more fully set forth at length herein.

51. The illegal approach, pursuit, stop and search employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

52. Defendants lacked probable cause to search plaintiff.

53. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

54. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

55. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

56. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FOURTH CAUSE OF ACTION.

Denial of Right to Fair Trial

57. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 56 with the same force and effect as if more fully set forth at length herein

58. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Kings County District Attorney's Office.

59. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the District Attorney's Office.

60. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the District Attorney's Office.

61. In withholding/creating false evidence against plaintiff Carlos Diaz, and in providing/withholding information with respect thereto, defendants violated plaintiff's constitutional right to a fair trial under the New York State Constitution and under the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

62. As a result of the foregoing, plaintiff Carlos Diaz, sustained, inter alia, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings and deprivation of his constitutional rights.

63. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

64. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

65. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Negligent Infliction of Emotional Distress

66. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 65 with the same force and effect as if more fully set forth at length herein.

67. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to plaintiff, Carlos Diaz. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

68. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed plaintiff by the laws and Constitution of the State of New York.

69. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

70. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

71. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

72. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SIXTH CAUSE OF ACTION

Negligent Hiring, Retention, Training and Supervision

73. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 72 with the same force and effect as if more fully set forth at length herein.

74. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

75. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SEVENTH CAUSE OF ACTION

Failure to Intervene

76. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 75 with the same force and effect as if more fully set forth at length herein.

77. The defendants that did not physically touch plaintiff, but were present when other officers violated plaintiff's Constitutional Rights had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

78. Defendants failed to intervene to prevent the unlawful conduct described herein.

79. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

80. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

81. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

82. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

83. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

JURY DEMAND

84. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff Carlos Diaz demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
April 26, 2019

By: /s/
STUART E. JACOBS
DAVID M. HAZAN
JACOBS & HAZAN, LLP
Attorneys for Plaintiff
30 Vesey Street, 4th Floor
New York, NY 10007
(212) 577-2690

TO: City of New York, Corporation Counsel, 100 Church Street, NY, NY 10007
POLICE OFFICER RONY SHAROUBIM, Shield No. 24674, 68th Precinct, 333 65th St, Brooklyn, NY 11220
POLICE OFFICER MICHAEL RANDAZZO, Shield No. 02621, 68th Precinct, 333 65th St, Brooklyn, NY 11220
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POLICE OFFICER STEVENSON LAPORTE, Shield No. 25231, 68th Precinct, 333 65th St, Brooklyn, NY 11220
LIEUTENANT JOSEPH WERNERSBACH, 68th Precinct, 333 65th St, Brooklyn, NY 11220

ATTORNEY'S VERIFICATION

STUART E. JACOBS, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
April 26, 2019

_____/s/
STUART E. JACOBS